

**SUBSTITUTE FOR
HOUSE BILL NO. 5745**

A bill to amend 1927 PA 175, entitled
"The code of criminal procedure,"
by amending section 16m of chapter XVII (MCL 777.16m), as amended
by 2023 PA 200.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 CHAPTER XVII

2 Sec. 16m. This chapter applies to the following felonies
3 enumerated in chapter 750 of the Michigan Compiled Laws:

4 M.C.L.	Category	Class	Description	Stat	Max
5 750.223(2)	Pub saf	F	Sale of firearm to minor –	4	
6			subsequent offense		



1	750.223(3)	Pub ord	D	Sale of firearm to person	10
2				prohibited from possessing	
3	750.224	Pub saf	E	Manufacture or sale of	5
4				silencer, bomb, blackjack,	
5				automatic weapon, gas	
6				spray, etc.	
7	750.224a(4)	Pub saf	F	Possession or sale of	4
8				electrical current weapons	
9	750.224a(6)	Pub saf	G	Improper use of electro-	2
10				muscular disruption device	
11	750.224b	Pub saf	E	Possession of short	5
12				barreled shotgun or rifle	
13	750.224c	Pub saf	F	Armor piercing ammunition	4
14	750.224d(2)	Person	G	Using self-defense spray	2
15				device	
16	750.224e	Pub saf	F	Manufacture/sale/possession	4
17				of devices to convert	
18				semiautomatic weapons	
19	750.224f(6)	Pub saf	E	Possession or sale of	5
20				firearm by prohibited	
21				person	
22	750.224f(7)	Pub saf	E	Possession or sale of	5
23				ammunition by prohibited	
24				person	
25	750.226	Pub saf	E	Carrying firearm or	5
26				dangerous weapon with	
27				unlawful intent	
28	750.227	Pub saf	E	Carrying a concealed weapon	5



1	750.227a	Pub saf	F	Unlawful possession of	4
2				pistol	
3	750.227c	Pub saf	G	Possessing a loaded firearm	2
4				in or upon a vehicle	
5	750.227f	Pub saf	F	Wearing body armor during	4
6				commission of certain	
7				crimes	
8	750.227g(1)	Pub saf	F	Felon purchasing, owning,	4
9				possessing, or using body	
10				armor	
11	750.230	Pub saf	G	Altering ID mark on firearm	2
12	750.232a(3)	Pub saf	G	False statement in a	4
13				firearm application	
14	750.234a(1)(a)	Pub saf	D	Discharging firearm from	10
15				vehicle	
16	750.234a(1)(b)	Person	C	Discharging firearm from	15
17				vehicle causing physical	
18				injury	
19	750.234a(1)(c)	Person	B	Discharging firearm from	20
20				vehicle causing serious	
21				impairment	
22	750.234a(1)(d)	Person	A	Discharging firearm from	Life
23				vehicle causing death	
24	750.234b(1)	Pub saf	D	Discharging firearm at a	10
25				dwelling or potentially	
26				occupied structure	
27	750.234b(2)	Pub saf	D	Discharging firearm in a	10
28				dwelling or potentially	
29				occupied structure	



1	750.234b(3)	Pub saf	C	Discharging firearm in or	15
2				at a dwelling or	
3				potentially occupied	
4				structure causing physical	
5				injury	
6	750.234b(4)	Person	B	Discharging firearm in or	20
7				at a dwelling or	
8				potentially occupied	
9				structure causing serious	
10				impairment	
11	750.234b(5)	Person	A	Discharging firearm in or	Life
12				at a dwelling or	
13				potentially occupied	
14				structure causing death	
15	750.234c	Pub saf	F	Discharging firearm at	4
16				emergency/police vehicle	
17	750.234g(1)	Person	D	Discharging firearm at a	10
18				potentially occupied motor	
19				vehicle	
20	750.234g(2)	Person	B	Discharging firearm at a	20
21				motor vehicle potentially	
22				occupied by a minor	
23	750.235b(2)	Pub saf	D	Threatening to commit	10
24				violent act against school	
25				students or employees on	
26				school property with an	
27				overt act toward completion	
28				or with specific intent	



1	750.236	Person	C	Setting spring gun – death	15
2				resulting	
3	750.237(3)	Person	E	Using firearm while under	5
4				the influence or impaired	
5				causing serious impairment	
6	750.237(4)	Person	C	Using firearm while under	15
7				the influence or impaired	
8				causing death	

9 Enacting section 1. This amendatory act takes effect 90 days
10 after the date it is enacted into law.

11 Enacting section 2. This amendatory act does not take effect
12 unless House Bill No. 5744 of the 103rd Legislature is enacted into
13 law.